

California and Federal Privacy Statutes and Computer-related Evidence

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Computers are increasingly becoming a common element of a crime scene. Used as either a tool to facilitate the commission of the crime or as a repository of information, the use of a computer by both victims and suspects is forcing prosecutors to become experts in an area of law that is evolving at an unsettled pace. In dealing with computer-related evidence, prosecutors must become aware of some of the lesser-known federal and state privacy issues that may come into play.³

Title III of the Omnibus Crime Control and Safe Streets Act of 1968 (Title III), the Pen Registers and Trap and Trace Device chapter of Title 18 (Pen/Trap), the Electronic Communication Privacy Act (ECPA), and the Privacy Protection Act (PPA) are four such statutes and a basic awareness of their principles and the rights they may afford to suspects and third parties is essential to avoiding unnecessary legal difficulties that might lead to financial liability. It also must be remembered that although the ECPA sets the minimum level of privacy protection, the California Constitution, state statutes, and state court decisions provide additional levels of privacy protection.

Title III

Title III protects electronic communication from interception during transmission (e.g., wiretap) by a third party who is not a participating member of the communication.⁴ A human voice and most Internet communications, including email, are electronic communication.⁵ Title III applies to all parties, private and law enforcement alike. California's more restrictive version of Title III is codified in Chapter 1.3 of the Penal Code.⁶ California additionally prohibits interception or recording of a confidential communication⁷ during transmission (e.g., recording) by a party to the communication.⁸

A public or private party is generally prohibited from voluntarily disclosing the content of wire and electronic communication intercepted during transmission. In California state court the eight exceptions to this rule are:

- (1) wire tap order;⁹
- (2) where the addressee/sender consents to the interception;¹⁰

- (3) when the interception is necessary to protect the rights or property of the communication service provider;¹¹
- (4) when the interception is made by a law enforcement officer or designee who is a party to the communication;¹²
- (5) when the interception is made by a victim of a specified crime (including harassing phone calls) who is a party to the communication;¹³
- (6) upon order by a judge following the request of a victim of domestic violence who is seeking a domestic violence restraining order;¹⁴
- (7) where the communication provider inadvertently obtains information that pertains to the commission of a crime;¹⁵ and
- (8) when the communication is made through a system that is configured so that the communication is readily accessible to the general public.¹⁶

A confidential communication that is obtained in violation of these provisions cannot be used for any purpose.¹⁷

Pen/Trap

The Pen/Trap statute regulates the collection of addressing information for wire and electronic communication.¹⁸ The addressing information for a telephone call is either the outgoing call's telephone number or the incoming call's origination number (caller ID).¹⁹ This also applies to Internet communication. Every computer communication contains a "header," which contains address information.

An Electronic Communication Service (ECS) provider²⁰ may use a pen/trap device without a court order where:

- (1) the user consents to the interception;²¹
- (2) when the interception is necessary to protect the rights or property of the communication service provider;²²
- (3) when the interception is necessary to protect the communication service provider or a user of that service (customer or other provider) from fraudulent, unlawful, or abuse of service;²³ and
- (4) when there is an emergency involving an immediate risk of death or serious physical injury to a person.²⁴

Law enforcement can obtain this address information via a pen register or trap and trace order. This investigative tool is helpful in identifying the address of where the suspect is coming from when they access information in a Hotmail or Yahoo! account. In California, a judicial review of the order is required to authorize the installation of a pen register or trap and trace device.²⁵ The applicant is required to justify that the information likely to be obtained is relevant to an ongoing criminal investigation.²⁶ The order is only good for 60 days; however, extensions may be granted upon application.²⁷ The order shall

be sealed until otherwise directed by the court and the ECS provider shall be directed not to release information relating to the pen/trap device until further ordered by the court.²⁸

Although federal law grants the authority to state courts to issue these orders, it is unclear if a state court can issue such an order upon an out-of-state ECS provider. Use of a search warrant to authorize the use of a pen/trap device remedies this issue. The order is only good for 10 days and must be issued by a Superior Court judge.²⁹ Penal Code section 1524.2 allows the out-of-state service of a California search warrant on an ECS provider that is qualified to do business in California pursuant to section 2105 of the Corporations Code.

ECPA

The Electronic Communication Privacy Act protects communication based upon its form. It protects wire and electronic communication content in storage by the provider (e.g., email records held by an Internet Service Provider (ISP)).³⁰ The ECPA applies to all parties, private and law enforcement alike. However, for law enforcement, there are mechanisms for requiring disclosure to the government by public ECS providers of information regarding an electronic communication. The most well-known example of an ECS provider would be an ISP, such as America Online, Hotmail, or Yahoo!.

A public or private ECS provider is generally prohibited from voluntarily disclosing the content of wire and electronic communication intercepted during transmission.³¹ The four exceptions to this rule are: (1) where the addressee/sender consents to the disclosure;³² (2) where the communication provider is permitted to disclose customer communications in emergencies involving an immediate risk of death or serious physical injury to a person;³³ (3) when the disclosure is necessary to protect the rights or property of the communication service provider;³⁴ and (4) where the communication provider inadvertently obtains information that pertains to the commission of a crime.³⁵ The appropriate mechanism available to California law enforcement to compel disclosure of information is a search warrant.³⁶

Pursuant to the ECPA, a subpoena can be used to obtain basic subscriber information.³⁷ Basic subscriber information includes customer's name; address; length of service; means and source of payment (including any credit card or bank account number); local and long-distance telephone toll billing records; and records of session times and durations, as well as any temporarily assigned network address.³⁸ However, in that this information would be considered a "virtual current biography" of a person, the California Constitution requires a subpoena duces tecum³⁹ or other judicially reviewed process, to obtain this information.⁴⁰ Failure to obtain a subpoena duces tecum or other process authorized by a state judge for this information will not result in suppression but may have civil consequences.⁴¹

Pursuant to the ECPA, a subpoena can be used to obtain opened email from a provider if the "customer" or "subscriber" is given prior notice of the disclosure by the

government.⁴² This disclosure may be delayed for up to 90 days when notice would jeopardize a pending investigation or endanger the physical safety of a person.⁴³ An extension of an additional 90 days may be considered by the issuing court.⁴⁴ Following the delay notification period, the government must give notice.⁴⁵

Pursuant to the ECPA, a court order, sometimes referred to as an “articulable facts order” or “§ 2703(d) court order,” may be sought to obtain all other subscriber information except the content of an unopened email that has been stored for 180 days or less.⁴⁶ To obtain a “§ 2703(d) court order,” there must be specific and articulable facts showing that there are reasonable grounds to believe that the specified records are relevant and material to an ongoing criminal investigation.⁴⁷ These records would include complete audit trails/logs, Web sites visited, identities of email correspondents, cell site data from cellular/PCS carriers, and opened email. As a practical matter, a “§ 2703(d) court order” can also be used to obtain basic subscriber information. Notice to the subscriber is only required when opened email is requested from the provider. (See *supra* using a subpoena to obtain opened email.) A “§ 2703(d) court order” may be issued by a California court.⁴⁸ However, the federal statute granting this authority does not confer extraterritorial effect on the “§ 2703(d) court order” issued by the state court.⁴⁹

A search warrant is necessary for obtaining unopened electronic communication in storage for less than 180 days or voice mail.⁵⁰ As the level of governmental process escalates from subpoena to court order to search warrant, it must be remembered that the information available under the less exacting standard is included at the higher level (i.e., a search warrant will obtain basic subscriber information, transactional information, and content of the stored communication).

The California State Legislature has recently authorized the use of a search warrant to obtain specified basic subscriber information⁵¹ held by an ECS provider, when there is a showing that the records relate to the commission of a specified misdemeanor offense.⁵² It is important to note that a search warrant issued pursuant to this subdivision will only authorize the production of the specified basic subscriber information. It will not allow production of any other subscriber data, including e-mail.

The use of a search warrant removes the need for the government to comply with the notice requirements previously mentioned.⁵³ Additionally, law enforcement is allowed to request from the court an order commanding the communication provider not to disclose the existence of any issued court order, for such a period as the court deems appropriate, where notification would lead to: (1) endangering the physical safety of an individual; (2) flight from prosecution; (3) tampering with evidence; (4) intimidation of potential witnesses; or (5) otherwise seriously jeopardizing an investigation or unduly delaying a trial.⁵⁴

Law enforcement can and should talk to the ISP in advance about what types of information are sought and what the ISP may have. 18 U.S.C. § 2703(f) authorizes law enforcement to request the provider to take all steps necessary to preserve records and

other information in its possession while law enforcement begins to obtain the necessary legal process to obtain the records. This 2703(f) order or preservation request only applies to information in possession of the provider at the time the request is made.

There is no suppression remedy for a violation of the ECPA except in those cases where the defendant's constitutional rights have been violated.⁵⁵ Civil damages are the exclusive remedy for violation of the ECPA.⁵⁶ These include a minimum damage amount of \$1,000, plus costs, punitive damages, and attorney fees. Negligent breaking or destroying of equipment is also actionable. Additionally, loss of business opportunity may be actionable, particularly if it is brought by innocent third parties. Employees of the United States may be subject to disciplinary action if the violation was willful or intentional. Good faith defense is complete.⁵⁷

PPA

The Privacy Protection Act⁵⁸ protects persons who may broadly, but reasonably, claim to be publishers. The PPA establishes safeguards for these "publishers" from governmental search and seizure of the materials in their possession. These materials may be either "work product" (materials created by the author/publisher) or "documentary materials" (any materials that document or support the work product). Unlike the ECPA, the PPA applies only to law enforcement. If the material is covered by the PPA, law enforcement must serve the target with a subpoena, allowing the target to challenge the subpoena by a motion to quash before complying with it. Article I, section 2(b) of the California State Constitution "additionally protects a newsperson from being adjudged in contempt for refusing to disclose either (1) unpublished information, or (2) the source of the information, whether published or unpublished."⁵⁹

Exception to the PPA requirements of a subpoena generally include: (1) materials searched for or seized are contraband, instrumentalities, or fruits of the crime; (2) materials searched for are evidence of a crime; or (3) the seizure of materials is necessary to prevent death or serious bodily injury.⁶⁰ The PPA does not require investigators to give the publisher notice when doing so would reasonably result in the destruction, alteration, or concealment of the materials.⁶¹

The importance of this act to prosecutors and investigators lies more in the area of commingled materials. Where there is evidence relating to the crime located on a computer which also contains protected material ("work product" or "documentary materials"), issues concerning proper scope and execution of a search warrant will arise. It is recommended that a protocol be in place to address how to attempt to separate these types of material.⁶² Recent court cases appear to indicate that the courts are limiting the scope of PPA protection to the press and certain other people not suspected of committing a crime (i.e., PPA does not apply to criminal suspects).⁶³ However, until this issue is more firmly settled, the best practice would be to minimize the taking of potentially protected materials and to return potentially protected materials that are taken as soon as possible.⁶⁴

There is no suppression remedy for a violation of the PPA.⁶⁵ Civil damages are the exclusive remedy for violation of the PPA. These include actions for damages, including attorney fees and costs, with a statute of limitations of two years.⁶⁶ The “good faith” defense is available to law enforcement investigators under this statute.⁶⁷ The good faith defense does not extend to government entities, except in limited circumstances.⁶⁸ Nothing in the PPA prevents the government from seeking forfeiture of computers or related media containing commingled materials.⁶⁹

Conclusion

Computers and electronic communication are an intrinsic part of the new crime scene. Knowing the laws that protect the privacy of information must be a priority for the investigators and prosecutors who seek to utilize the best practices in search and seizure of computer evidence, and to minimize the potential personal and departmental liability of the parties involved.

- ¹. Ms. Kreston is a private consultant. Contact her at susankreston@casec.net.
- ². Mr. Morgester is Deputy Attorney General, State of California Department of Justice.
- ³. An excellent resource on federal issues is the United States Department of Justice manual titled *Searching and Seizing Computers and Obtaining Electronic Evidence in Criminal Investigations*. The manual may be downloaded at <http://www.cybercrime.gov>.
- ⁴. See 18 U.S.C. §§ 2510-2522; Pen. Code, §§ 631 (wiretap), 632 (cellular radio), 632.6 (cordless or cellular telephones).
- ⁵. 18 U.S.C. § 2510.
- ⁶. See generally Pen. Code, §§ 629.50-629.98.
- ⁷. The term “confidential communication” includes any communication carried on in circumstances as may reasonably indicate that any party to the communication desires it to be confined to the parties thereto, but excludes a communication made in a public gathering or in any legislative, judicial, executive, or administrative proceeding open to the public, or in any other circumstance in which the parties to the communication may reasonably expect that the communication may be overheard or recorded. (Pen. Code, § 632 (c).)
- ⁸. Pen. Code, § 632. Federal law is less restrictive. (See 18 U.S.C. § 2510(5)(a).)
- ⁹. See 18 U.S.C. §§ 2510-2522; Pen. Code, §§ 629.50-629.98. A resource for sample wiretap orders and other pertinent legal authority is Robert Schirn, Barbara E. Turner, *WIRETAP MANUAL Los Angeles County District Attorney’s Office* (2001).
- ¹⁰. 18 U.S.C. § 2511(2)(c)-(d).
- ¹¹. 18 U.S.C. § 2511(2)(a)(i); Pen. Code, §§ 632 (e), 632.5 (b), 632.7 (b).
- ¹². Pen. Code, § 633.
- ¹³. One party to a confidential communication may record the communication for the purpose of obtaining evidence reasonably believed to relate to the commission by another party to the communication of the crime of extortion, kidnapping, bribery, any felony involving violence against the person, or a violation of Section 653m. (Pen. Code, § 633.5.)
- ¹⁴. Pen. Code, § 633.6.
- ¹⁵. 18 U.S.C. § 2511(3)(b)(iv).
- ¹⁶. 18 U.S.C. § 2511(2)(g)(i).
- ¹⁷. Pen. Code, § 632 (d).
- ¹⁸. See 18 U.S.C. §§ 3121-3127. A resource for sample pen/trap device orders and other pertinent legal authority is Robert Schirn, Barbara E. Turner, *WIRETAP MANUAL Los Angeles County District Attorney’s Office* (2001).
- ¹⁹. See 18 U.S.C. § 3127 (3)-(4).
- ²⁰. An ECS provider is “any service which provides to users thereof the ability to send or receive wire or electronic communications.” 18 U.S.C. 2510 (15).
- ²¹. 18 U.S.C. § 3121(b).
- ²². *Id.*; 18 U.S.C. § 2702(c)(3); See also Pen. Code, §§ 632 (e), 632.5 (b), 632.7 (b); although not directly addressed under California law, the right to disclose the content of communications necessarily implies the less intrusive ability to disclose non-content records. *Cf. United States v. Auler* (7th Cir.

1976) 539 F.2d 642, 646 n. 9 (phone company's authority to monitor and disclose conversations to protect against fraud necessarily implies right to commit lesser invasion of using, and disclosing fruits of, pen register device).

²³. *Id.* See 18 U.S.C. §§ 3121-3127. A resource for sample pen/trap device orders and other pertinent legal authority is Robert Schirn, Barbara E. Turner, *WIRETAP MANUAL Los Angeles County District Attorney's Office* (2001).

²⁴. 18 U.S.C. § 2702(b)(6). *Warning*: This information may be considered protected under the California Constitution. (See Cal. Const., art. I, §§ 13; *People v. Larkin* (1987) 194 Cal.App.3d 650; *People v. Chapman* (1984) 36 Cal.3d 98, 105-106, 110; *People v. Blair* (1979) 25 Cal.3d 640, 748-755; *Carlson v. Superior Court* (1976) 58 Cal.App.3d 13, 21-23.) There is currently an absence of statutory rules addressing this type of disclosure (*cf.* Pen. Code, §§ 632 (e), 632.5 (b), 632.7 (b)). Disclosure will not result in suppression but may have civil consequences. (*People v. McKay* (2002) 27 Cal.4th 601; *People v. Larkin*, *supra*, 194 Cal.App.3d 650.)

²⁵. *People v. Larkin*, *supra*, 194 Cal.App.3d 650.

²⁶. 18 U.S.C. § 3123.

²⁷. 18 U.S.C. § 3123 (c).

²⁸. 18 U.S.C. § 3123 (d).

²⁹. *People v. Larkin*, *supra*, 194 Cal.App.3d 650.

³⁰. See 18 U.S.C. § 2701 et seq.

³¹. See 18 U.S.C. § 2701 (a).

³². See 18 U.S.C. § 2701 (c).

³³. See 18 U.S.C. § 2702 (b)(6). *Warning*: This information may be considered protected under the California Constitution. (See Cal. Const., art. I, §§ 13; *People v. Larkin*, *supra*, 194 Cal.App.3d 650; *People v. Chapman*, *supra*, 36 Cal.3d 98, 105-106, 110; *People v. Blair*, *supra*, 25 Cal.3d 640, 748-755; *Carlson v. Superior Court*, *supra*, 58 Cal.App.3d 13, 21-23.) There is currently an absence of statutory rules addressing this type of disclosure (*cf.* Pen. Code, §§ 632 (e), 632.5 (b), 632.7 (b)). Disclosure will not result in suppression but may have civil consequences. (*People v. McKay*, *supra*, 27 Cal.4th 601; *People v. Larkin*, *supra*, 194 Cal.App.3d 650.)

³⁴. See 18 U.S.C. § 2702 (c); Pen. Code, §§ 632 (e), 632.5 (b), 632.7 (b).

³⁵. See 18 U.S.C. § 2702 (c).

³⁶. As a practical matter the search warrant allows access to basic subscriber information, transactional information, and content of the stored communication and pursuant to Penal Code section 1524.2 can be served on an out-of-state ECS provider that does business with California.

³⁷. See 18 U.S.C. § 2702 (c).

³⁸. See 18 U.S.C. § 2703 (c).

³⁹. "The issuance of a subpoena duces tecum ... is purely a ministerial act and does not constitute legal process in the sense that it entitles the person on whose behalf it is issued to obtain access to the records described therein until a judicial determination has been made that the person is legally entitled to receive them." (*People v. Blair*, *supra*, 25 Cal.3d 640, 651.)

⁴⁰. Cal. Const., art. I, § 13; *People v. Chapman*, *supra*, 36 Cal.3d 98, 105-106, 110 [the government is seeking the name and address of a person in order to provide an essential link to establish a "virtual

current biography.” Thus, protection of the individual’s name and address is the only way to protect the ‘virtual current biography’]; *People v. Blair*, *supra*, 25 Cal.3d 640, 748-755; *Carlson v. Superior Court* (1976) 58 Cal.App.3d 13, 21-23; *See also* California Public Utilities Rule 35.

⁴¹. Because use of a subpoena does not violate the Fourth Amendment, the exclusionary rule is not applicable. (*People v. Bencomo* (1985) 171 Cal.App.3d 1005, 1014-1015 [federal exclusionary rules do not require suppression of unlisted telephone subscriber information obtained without warrant]. Nevertheless, California law still governs the scope of lawful searches and seizures in this state and law enforcement officials are still required to follow that law. (*People v. McKay*, *supra*, 27 Cal.4th 601; *People v. Larkin*, *supra*, 194 Cal.App.3d 650, 654; *cf. United States v. Leon* (1984) 468 U.S. 897, 104 S.Ct. 3405, 3411-3412, 82 L.Ed.2d 677 [constitutional invasion of rights is fully accomplished by unlawful search or seizure itself, not by subsequent admission of evidence].)

⁴². *See* 18 U.S.C. §§ 2703(b)(1)(B), 2705.

⁴³. *See* 18 U.S.C. §§ 2703(b)(1)(B), 2705 (a)(4).

⁴⁴. *Id.*

⁴⁵. The government must send a copy of the request or process used as well as notify the subscriber why the notice was delayed. *See* 18 U.S.C. § 2703(a)(5).

⁴⁶. 18 U.S.C. §§ 2703(d).

⁴⁷. *Id.*

⁴⁸. *See* 18 U.S.C. §§ 2711(3), 3127(2)(B) (defining “court of competent Jurisdiction” to include “a court of general criminal jurisdiction of a State authorized by law of the State to enter orders authorizing the use of a pen register or trap and trace device.”)

⁴⁹. *See* 18 U.S.C. §§ 2711(3).

⁵⁰. 18 U.S.C. §§ 2703(a); Penal Code § 1524.2. Note that both Penal Code §§ 629.51(a) and 1524.2 cover stored voice communications (voice mail). Penal Code § 629.51(a) uses the definition of “wire communication” as it appeared under federal law prior to the amendment by the Patriot Act. This definition states that “wire communication” includes “any electronic storage of such communication.” The production of stored communication is also covered by Penal Code § 1524.2. Penal Code § 1524.2 references the Patriot Act amendments which deleted “electronic storage” of wire communications from the definition of wire communication to ensure that stored wired communications were covered under the same rules as stored electronic communications. California Superior Courts have been finding that Penal Code § 1524.2 is the appropriate mechanism for obtaining stored voice mail, as opposed to a wiretap order.

⁵¹. Penal Code § 1524.3 limits disclosure to the name, address, local and long distance telephone toll billing records, telephone number or other subscriber number or identity, and length of service of a subscriber to or customer of that service, and the types of services the subscriber or customer utilized, when the governmental entity is granted a search warrant pursuant to Penal Code section 1524, subdivision (a)(7).

⁵². *See* Penal Code § 1524 (a)(7).

⁵³. *See* 18 U.S.C. § 2703(b)(1)(A); Penal Code § 1524.3.

⁵⁴. *See* 18 U.S.C. §§ 2703(b)(1)(A), 2705(a).

⁵⁵. *See United States v. Kennedy* (2000) 81 F.Supp. 2d 1103.

⁵⁶. *See* 18 U.S.C. §§ 2707, 2708.

⁵⁷. See 18 U.S.C. § 2707(e) - *Defense. A good faith reliance on -(1) a court warrant or order, a grand jury subpoena, legislative authorization, or a statutory question; . . . is a complete defense to any civil or criminal action brought under this chapter or any other law.*

⁵⁸. See 42 U.S.C. §§ 2000aa et seq. For a succinct summary of the history of the PPA, see *Depugh v. Sutton* (1996) 917 F.Supp. 690. For an overview of both the PPA and state law, see Jerry P. Coleman, *The Prosecution Versus the Press: A Historical and Personal Perspective*, The California District Attorneys Association's Quarterly Journal, Vol. XXI, No. 3 (1999).

⁵⁹. *Delaney v. Superior Court* (1990) 50 Cal.3d 785, 796-797.

⁶⁰. See 42 U.S.C. §§ 2000aa et seq.

⁶¹. 42 U.S.C. §§ 2000aa (b). This applies to "documentary materials," as defined by 42 U.S.C. §§ 2000aa-7(a).

⁶². See *United States v. Hunter* (D. Vt. 1998) 13 F.Supp. 2d 574.

⁶³. *U.S. v. Hunter* (D. Vt. 1998) 13 F. Supp.2d 574, 582; see also *Capra v. Smith* (9th Cir. 2000 - unpublished) 208 F.3d 220.

⁶⁴. See *Steve Jackson Games, Inc. v. United States Secret Service* (1994) 816 F.Supp. 432.

⁶⁵. See 42 U.S.C. §§ 2000aa-6(a),(d),(e); *Davis v. Gracey* (10th Cir. 1997) 11 F.3d 1472, 1482.

⁶⁶. See 42 U.S.C. §§ 2000aa-6(f).

⁶⁷. See 42 U.S.C. §§ 2000aa-6(b).

⁶⁸. See 42 U.S.C. §§ 2000aa-6(c).

⁶⁹. See *State v. One (1) Pioneer CD_ROM Changer* (1994) 891 P.2d 600, 607, cited in Stephen K. Bayens, *The Search and Seizure of Computers: Are We Sacrificing Personal Privacy for the Advancement of Technology?*, 48 Drake L.Rev. 239 (2000).